

**NATO SUPPORT AND PROCUREMENT AGENCY
AWARD REVIEW AND DEBARMENT BOARD**

**DECISION
6/ADMIN/2025**

**Practice Direction
Implementing the Terms of Reference of the
NSPA Award Review and Debarment Board (NSPA OI 4200-09)**

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1. INTRODUCTION

In accordance with the Terms of Reference (hereafter ToR) of the NSPA Award Review and Debarment Board (hereafter “the Board”), The Board shall agree on any procedure not provided for under the ToR. This shall include the issuance of practice directions relating to the filing of written pleadings and the preparation for and conduct of proceedings. These Practice Directions (hereafter “Directions”) do not amend, and are subject to, the requirements of the ToR, and any subsequent procedural orders issued by the Board in a given case. The purpose of these Directions is to ensure the smooth and efficient conduct of the proceedings and to assist the parties in understanding the procedures followed in proceedings before the Board. By outlining in greater detail the conduct of the proceedings before the Board, the Directions give the parties and their representatives a better understanding of the provisions of the ToR, in particular with regard to the preparation and submission of written documents and the conduct of proceedings.

2. DEFINITIONS

Appellant	a) a supplier whose rights have been adversely affected by the alleged unduly restrictive requirements of Requests for Proposals (RFPs) with an estimated value equal to or exceeding 800,000 Euros (Rule 4.7.1); b) a supplier whose rights have been adversely affected by the alleged wrongful determination of commercial and/or technical non-compliance with the requirements of the RFP in relation to contract awards whose value is equal to or exceeding 800,000 Euros (Rule 4.7.2); c) a supplier whose rights have been adversely affected by the erroneous determination of the sole source character of a requirement relating to contracts with a value equal to or exceeding 800,000 Euros (Rule 4.7.3); d) a supplier rendered ineligible by the Decision of the Competition Advocate under NSPA OI 4200-07 to participate in NSPA procurements and to enter into contracts with or involving NSPA following the determination, by NSPA, that said supplier has engaged or attempted to engage in a sanctionable practice (Rule 4.7.4).
Respondent	The NATO Support and Procurement Agency (NSPA), represented by its General Manager.
Secretariat	The entity providing administrative and secretarial support to the Board. The Secretariat functions as the Registry of the Board. Any and all communications to and from the Board

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	shall be conducted via the designated functional email account ARB-Secretariat@nsa.nato.int
Board	The plenary of all appointed Board members, in the context of Article 4.1 of the ToR. Board equally refers to the Panel assigned to a case.
Panel	A body composed of three members of the Board (Rule 4.2) who serve as the decision makers.
President	The member of the Board who has been elected by the Board to serve in this capacity (Rule 4.1).
Vice President	The member of the Board who has been elected by the Board to serve in this capacity (Rule 4.1.5).
Presiding member of the Panel	The Member of the Board who has been designated by the case allocation system to preside over the appeal, in accordance with Rule 4.2.2.
Reporting member of the Panel	The Member of the Board who has been designated by the case allocation system to preside over the appeal, in accordance with Rule 4.2.2.
Submission	A written document submitted to the Board constituting an appeal or a rejoinder (if submitted by the appellant) or a reply or a surrejoinder (if submitted by the respondent).
Decision	The final determination of the appeal.

3. TIME LIMITS

- 3.1 The time limits prescribed in the ToR and the Directions:
- a) Refer to calendar days and shall not include the day of the event from which the period runs;
 - b) Shall include the next working day of the Secretariat when the last day of the period is not a working day for NSPA;
 - c) Shall be deemed to have been met, provided that the relevant party has been duly informed of the applicable deadline by the Competition Advocate, if the documents in question were received by midnight Luxembourg time on the last day of the deadline.
- 3.2 Appeals shall be submitted to the Secretariat within seven (7) calendar days from the date of the notification of the Competition Advocate's decision (Rule 4.8.4).
- 3.3 Replies shall be submitted to the Secretariat within seven (7) calendar days from the service of the Appeal by the Secretariat unless indicated otherwise by the Board.

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- 3.4 Rejoinders and Surrejoinders – should they be exceptionally requested by the Board - shall be submitted to the Secretariat within the deadline indicated by the Board.
- 3.5 The Board should normally issue its final decisions within twenty-one (21) calendar days from the date of receipt of the last submission (the reply or surrejoinder as applicable).
- 3.6 The Secretariat shall allocate the Appeal received in accordance with the Board's internal case allocation system, at the latest on the next working day and shall inform the Parties of the Panel composition.
- 3.7 A document which the ToR requires for the submission of an appeal may not be submitted after the applicable deadline. .

4. CONFLICT OF INTEREST AND RECUSAL

- 4.1 The term “conflict of interest” means any factor that may impair or reasonably give the appearance of impairing the ability of a Board member to independently and impartially decide a case assigned to him or her.
- 4.2 A conflict of interest arises where a case assigned to a Panel involves any of the following:
 - a) A person with whom the Member of the Board has or had a personal, family, or other relationship which would prejudice the Board's independence;
 - b) A Member of the Board previously served in another capacity, including as an adviser, counsel, expert, or witness in the assigned case;
 - c) Any other circumstance that would make it appear to a reasonable and impartial observer that the Board member's participation in the resolution of the matter would be inappropriate or that the Member of the Board would lack objectivity.
- 4.3 Before accepting an allocated case in accordance with the Board's internal case allocation system, Board members must disclose to the Secretariat and to the Plenary of the Board any circumstances likely to create, in the minds of the Parties, a reasonable doubt as to their independence or impartiality. They must also disclose without delay any such circumstances, even if widely known, that may arise after they have accepted their assignment.
- 4.4 A Member of the Board who has or appears to have a conflict of interest shall promptly recuse himself or herself from the allocated case by informing the President and the Secretariat without undue delay.
- 4.5 A Party may submit a reasoned request for the recusal of a Member of the Board on the grounds of a conflict of interest to the President of the Board, who, after seeking comments from the Member concerned, shall decide on the request and shall inform the Parties of the decision in writing. Requests for recusal should be made within three (3) calendar days from the date on which the Secretariat informs the Parties of the composition of the Panel. The President shall adopt his/her reasoned decision within three (3) calendar days from the

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date of receipt of the request for recusal. A request for recusal of the President shall be referred to a Plenary of the Board, who shall adopt its decision by majority vote within three (3) calendar days from the date of receipt of the request for recusal in accordance with Rule 4.4.7.

5. APPEAL

- 5.1 An Appeal shall be filed by the Appellant or the Appellant's duly authorized counsel within the deadlines set out in Rule 4.8.4 of the ToR.
- 5.2 For an Appeal to be admissible, it must have already been raised in the internal administrative review process in accordance with Rule 4.8.6 of the ToR.
- 5.3 An appeal instituting proceedings shall be submitted to the Board through the Secretariat. Each appeal shall contain:
 - a) The name and status of the Appellant;
 - b) The name of the Appellant's or authorised representative, if any;
 - c) The decision being challenged, and a summary of the Appeal not exceeding two (2) pages;
 - d) The value of the underlying procurement procedure in accordance with Rules 4.7.1-4.7.3;
 - e) Any relevant complaints that the Appellant has made in accordance with the relevant provisions of the ToR, and the results thereof;
 - f) The legal grounds on which the Appeal is based;
 - g) Any supporting evidence including where appropriate, statements of any supporting witnesses;
 - h) The remedy being sought in accordance with Rule 4.12 of the ToR.
- 5.4 The Appeal and its annexes shall be submitted in searchable .pdf format unless otherwise instructed by the Board.
- 5.5 The appeal must be accompanied by a proof of payment of applicable fees set out in the ToR. In the event of a failure to provide such proof within the deadline, the Appeal will not be registered and will not be transmitted to the Board.
- 5.6 The Appeal shall be signed on the last page by the Appellant or its duly authorised representative.
- 5.7 The documentation shall be legible. Electronic files should not be submitted in compressed or archived form, and the size of each document must not exceed 20 MB. Documents digitally signed will not be accepted.

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- 5.8 The date of filing is the date on which the Appellant has submitted an electronic copy of the Appeal, together with all accompanying documentation to the Secretariat.
- 5.9 The Appeal shall not exceed 20 pages excluding the cover page and the list of annexes (A4 format, Times New Roman, font size 12, 1.5 line spacing, 2.5 cm margins) with each paragraph numbered consecutively.
- 5.10 The Appellant can withdraw the appeal provided that such withdrawal is not subject to conditions. The Appellant shall inform the Secretariat in writing (following the same modalities for any other submission as indicated above) as soon as possible.

6. REPLY

- 6.1 The reply and its enclosures shall be submitted in searchable .pdf format within seven (7) calendar days from the receipt of the appeal unless indicated otherwise by the Board.
- 6.2 The reply shall be signed on the last page by NSPA's representative.
- 6.3 The reply shall not exceed 20 pages excluding the cover page and the list of annexes (A4 format, Times New Roman, font size 12, 1.5 line spacing, 2.5 cm margins) with each paragraph numbered consecutively.
- 6.4 Failure to submit a reply within the prescribed time will not preclude the Board from rendering its decision based on the documents available.

7. REJOINDER AND SURREJOINDER

- 7.1 At its discretion the Board may exceptionally decide that the Parties shall supplement their previously made arguments by way of a rejoinder and a surrejoinder.
- 7.2 The Board may order the Appellant to submit a rejoinder responding to the arguments raised in the reply. The Appellant shall submit its rejoinder within seven (7) calendar days from the receipt of the order. The Secretariat shall simultaneously transmit the rejoinder to the Board and to the NSPA.
- 7.3 NSPA shall submit its surrejoinder within seven (7) calendar days from the receipt of the rejoinder which the Secretariat shall transmit to the Appellant.
- 7.4 In their respective rejoinders and surrejoinders parties shall only address the arguments raised by the other party and shall refrain from repeating or supplementing their previously made arguments.
- 7.5 The rejoinder and surrejoinder shall not exceed 10 pages excluding the cover page and the list of annexes (A4 format, Times New Roman, font size 12, 1.5 line spacing, 2.5 cm margins), with each paragraph numbered consecutively.
- 7.6 In exceptional cases the Board may seek further information, including from persons with technical knowledge, or documents either from the Appellant or NSPA.

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8. MOTIONS AND CASE MANAGEMENT

- 8.1 A motion is a submission by which a Party seeks to obtain a ruling from the Board. A motion shall not exceed 5 pages excluding the cover page and the list of annexes (A4 format, Times New Roman, font size 12, 1.5 line spacing, 2.5 cm margins), with each paragraph numbered consecutively.
- 8.2 All requests to the Board for orders, directions, interim measures and other interlocutory determinations shall be made by a motion that states the grounds relied upon for the determination sought. Motions shall be made in writing and submitted to the Secretariat.
- 8.3 Where the motion is contested, regarding issues of law or fact, the opposing Party may file a Response. Unless otherwise directed by the Board, a response to a motion shall be filed within three (3) calendar days from the receipt of the motion by the other Party.
- 8.4 The Board shall rule on the motion within three (3) calendar days from the receipt of the response or may reserve its decision for its final decision.
- 8.5 The Presiding member of the Panel, may at any time, either on an application of a Party or on its own initiative, issue any order or give any direction which appears to the Board to be appropriate for the good administration of justice.

9. ANNEXES

- 9.1 Annexes are to be used for submitting evidence for consideration by the Board. They should consist of pre-existing documents. Annexes are not to be used to submit additional arguments or facts that were not included in the appeal or reply.
- 9.2 Parties shall limit their selection of documents to those relevant to the proceedings. Information to which the Board has access (e.g. Regulations, previous case law) should not be reproduced, and only the relevant extracts should be quoted in the text.
- 9.3 After either party has introduced a document as an annex, it should not be included again in subsequent submissions. Instead, each party should refer back to the Annex at issue.
- 9.4 The annexes must comply with the following rules:
 - a) The annexes must be preceded by a table of contents indicating the annex number, title, and date;
 - b) The annexes and the topic to which they refer must be clearly indicated in the submissions; and
 - c) The annexes must be legible.
- 9.5 Annexes should be clearly labelled with consecutive numbering. The Appellant shall use the prefix “A” and the Respondent shall use the prefix “R” in their annexes.

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10. HEARING

- 10.1 The Board shall rule on appeals based on the written submissions. In exceptional situations, should the interest of justice so require, then the Board, at its own discretion or upon reasoned request of a party, may decide to conduct an oral hearing via a secure videoconference. The length of the hearing will be decided by the Board and in full respect for adversarial process.
- 10.2 When the Appellant relies on an error of fact, the Board may re-evaluate the evidence at issue. The Board may need to re-evaluate the evidence at hand and determine whether the facts on which the decision is based have been established based on clear and convincing evidence, and/or whether the established facts qualify as a sanctionable practice (in the case of debarment). This would require the Board to engage in a process of fact-finding. The purpose of such fact-finding by the Board would be to obtain detailed knowledge of the relevant facts underlying a contested decision.
- 10.3 When the Board considers that it has been sufficiently informed, it shall declare the hearing adjourned and deliberate in camera.

11. DECISION

- 11.1 The Board shall normally issue a final decision within twenty-one (21) calendar days from NSPA's Reply. Where a decision cannot be issued within 21 calendar days, the Board shall inform NSPA and the Appellant of the reasons for the delay and provide a date on which a decision will be issued.
- 11.2 The Board shall provide written reasons in support of its final decision. The Parties are entitled to receive a copy of the decision within three (3) calendar days of its issuance. The Board's decision shall contain the following sections:
 - a) Overview or summary;
 - b) Concise statement of relevant facts;
 - c) Issues to be determined including the Parties' arguments;
 - d) Analysis, and conclusion;
 - e) Remedy awarded (if any).

12. RECTIFICATION

- 12.1 Clerical and arithmetical errors in the Decision may be corrected by the Board on its own initiative or at the request of a party.
- 12.2 As a general rule, a request for rectification shall be heard by the Board in its original composition.

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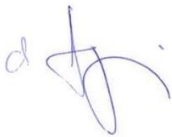
- 12.3 Requests for rectification shall not be used to seek a modification of the Decision concerned.
- 12.4 Requests for the rectification of clerical errors shall be sent by e-mail to the Secretariat, which shall transmit them to the Board. Such requests shall only be admissible if they are submitted within three (3) months of the date of notification of the award.
- 12.5 The Board shall give a reasoned decision as soon as possible.

13. PUBLICATION OF JUDGMENTS

- 13.1 An anonymized summary of the Board's final decisions is subject to publication according to NSPA's publication rules. In any case, the publication shall protect personal and business data.

Luxembourg, 18 December 2025

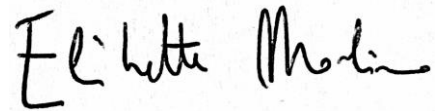
Peter HEGYI



Brian MCGARRY



Elisabetta MORLINO



Emmanuelle RAOULT



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